

Special Position of Jammu & Kashmir

- 1.** The jurisdiction of the Parliament in relation to Jammu & Kashmir is confined to the Union List, and the Concurrent List.
- 2.** Residuary power belongs to the Legislature of Jammu & Kashmir.
- 3.** Proclamation of Emergency under Art. 352 on the ground of internal disturbance has no effect in the State of Jammu & Kashmir, without the concurrence of the Government of the State.
- 4.** No decision affecting the disposition of the State can be made by the Government of India, without the consent of the Government of the State.
- 5.** The Union has no power to suspend the Constitution of the State on the ground of failure to comply with the directions given by the Union under Art. 365.
- 6.** Arts. 356-357 relating to suspension of constitutional machinery have been extended to Jammu & Kashmir by the Amendment Order of 1964. But "failure" would mean failure of the constitutional machinery of Jammu & Kashmir.
- 7.** The Union has no power to make a Proclamation of Financial Emergency with respect to the State of Jammu & Kashmir under Art. 360.
- 8.** Directive Principles of States Policy do not apply to the State of Jammu & Kashmir.
- 9.** Jammu & Kashmir has its own Constitution made by a separate Constituent Assembly and promulgated in 1957.
- 10.** The Constitution of Jammu & Kashmir (accepting the provisions relating to the relationship of the State with the Union of India), can be amended by an Act of the Legislative Assembly of the State, passed by not less than 2/3 majority.
- 11.** No alteration of the area or boundaries of Jammu & Kashmir can be made by Parliament without the consent of the Legislature of the State.
- 12.** The jurisdictions of the Comptroller and Auditor-General, the Election Commission, and the Special Leave jurisdiction of the Supreme Court have been extended to Jammu & Kashmir.